



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick Collins, City of Cheyenne
City Council Members

FROM: Cassie Pickett, PE 

DATE: August 14, 2024

SUBJECT: License Agreement for Terry Ranch Road – Cheyenne 230-kV Transmission Line Owl Creek – Cheyenne 115-kV Transmission Line for High Plains Road and Waterline.

Purpose of Project:

Project EPR-23-00066 High Plains Business Park – Phase I Watermain and EPR-23-00058 Project Cosmo Offsite Infrastructure – Roads can be referenced for project design details. The License Agreement is necessary for offsite improvements for the Cosmo Project submitted with the City, located at PIDN 13661910000400, HIGH PLAINS BUSINESS PARK: LOT 1 BLOCK 1.

Purpose of Agreement:

The purpose of this License Agreement is for the City of Cheyenne to acquire a Right-of-Way Use Application through the existing WAPA Easement from the Western Area Power Administration (WAPA) for the construction of High Plains Road and waterline.

Estimated Cost:

No cost associated.

RMR-LI-2024-14

UNITED STATES OF AMERICA
DEPARTMENT OF ENERGY
WESTERN AREA POWER ADMINISTRATION

Terry Ranch Road-Cheyenne 230-kV Transmission Line
Owl Creek-Cheyenne 115-kV Transmission Line
SESE Section 19, Township 13 North, Range 66 West
6th Principal Meridian, Laramie County, Wyoming

Vicinity of Structure 32/2 – 32/3
Approx. Station No. 1710+47.75

LICENSE AGREEMENT

THIS LICENSE AGREEMENT is made this _____ day of _____, 2024, between CITY OF CHEYENNE (LICENSEE), whether one or more, and the UNITED STATES OF AMERICA, Department of Energy, Western Area Power Administration (WAPA), represented by the officer executing this agreement, pursuant to the Reclamation Act, Act of June 17, 1902, 32 Stat. 388, and acts amendatory thereof and supplementary thereto, and the Department of Energy Organization Act, Act of August 4, 1977, 91 Stat. 565.

WITNESSETH:

WAPA concurs and grants to the LICENSEE upon the terms hereafter provided, a License for a period of 50 years from the date hereof for construction of High Plains Road and installation of new water line (FACILITY), proposed TOGETHER WITH THE INSTALLATION OF ABOVE GROUND MARKERS by the LICENSEE will not interfere with the operation and maintenance of the Terry Ranch Road-Cheyenne 230kV and Owl Creek-Cheyenne 115-kV Transmission Lines, if constructed in the manner and at the locations shown on Exhibit A, attached hereto and made a part hereof. This License is renewable.

In consideration of WAPA'S concurrence, the LICENSEE agrees to the following:

- (a) This license does not grant any right, privilege, or interest in the land. The LICENSEE is responsible for obtaining any necessary land rights from the underlying landowner.
- (b) This license is only valid provided the FACILITY is constructed, operated, and maintained in conformance with the attached drawings and/or exhibits. Any relocations, changes, or upgrades require additional concurrence by WAPA. LICENSEE agrees to alter or relocate its FACILITY, at no cost to WAPA, to accommodate future modifications of WAPA'S facilities, including but not limited to, upgrades of the transmission line.
- (c) Please note that the easement width is 90 feet (45 feet each side of the centerline). Reconstruction, operation, and maintenance of the transmission line requires that WAPA use heavy equipment within the easement area, therefore, WAPA will not be held liable for damages to the FACILITY should they occur. In addition, the pipeline should be installed in such a manner as to withstand heavy equipment in the easement area.
- (d) LICENSEE shall install above ground markers indicating the location of the buried FACILITY and maintain such above ground markers for the life of the FACILITY.
- (e) **Within WAPA's Right of Way, WAPA shall have access over this facility with vehicles that have a 32kip axle load.**

IF HEAVY EQUIPMENT WILL BE OPERATING UNDER THE LINE.

Post signs, "Caution – Overhead High Voltage Transmission Lines".

(f) **LICENSEE shall notify WAPA at least 15 business days prior to commencing installation of the FACILITY** to permit inspection by WAPA. Contact Ron Miller in WAPA'S Cheyenne Office, (307) 286-9047.

(g) To abide by and comply with all applicable Federal, State, and local laws and building and safety codes.

(h) Induced voltages and currents may occur on the FACILITY constructed or placed under or near high voltage transmission lines. The LICENSEE shall be responsible for the protection of personnel and equipment in their design, construction, operation, and maintenance of the FACILITY described in this License Agreement.

(i) It is specifically understood and agreed that WAPA shall have no liability and WAPA assumes no responsibility for any liability, loss and/or damage resulting from injury or death of persons whomsoever, or damage to, loss, or destruction of property whatsoever, when such liability, injury, death, loss, or damage results from or in connection with the use of WAPA'S easement area by LICENSEE.

(j) This agreement shall be binding on the successors or assigns of the LICENSEE and WAPA.

LICENSEE
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6017

THE UNITED STATES OF AMERICA
Western Area Power Administration
(800) 472-2306

Patrick Collins
Mayor of Cheyenne

Kevin Ripplinger
Cheyenne Maintenance Manager
Rocky Mountain Region

Western Area Power Administration
Rocky Mountain Region
Tracy Rogers
P.O. Box 3700 Loveland, CO
80539-3003
970-237-9873

EXHIBIT A
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NOTE: A minimum overhead clearance of at least 20 feet from the conductors must be maintained at all times.

RIGHT-OF-WAY USE APPLICATION

Date: 4-2-24 Transmission Line: TRS-CH 230-kV ROW 90'
OWL-CH 115-kV ROW 90'

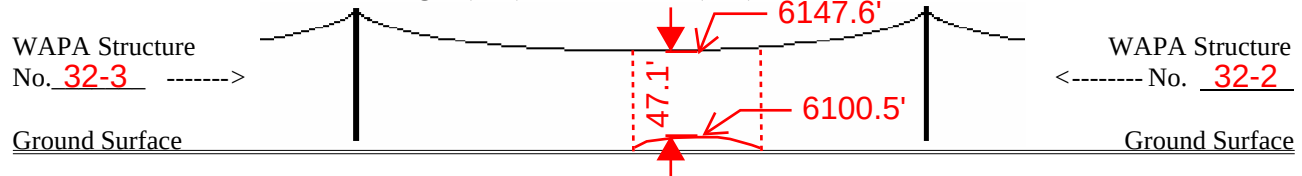
Description of Proposal (Narrative): Construction of High Plains road & installation of new water line
across WAPA 90' easement

Location: Section 19, Township 13N, Range 66W, SIX _____ (Meridian)

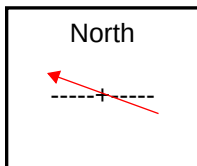
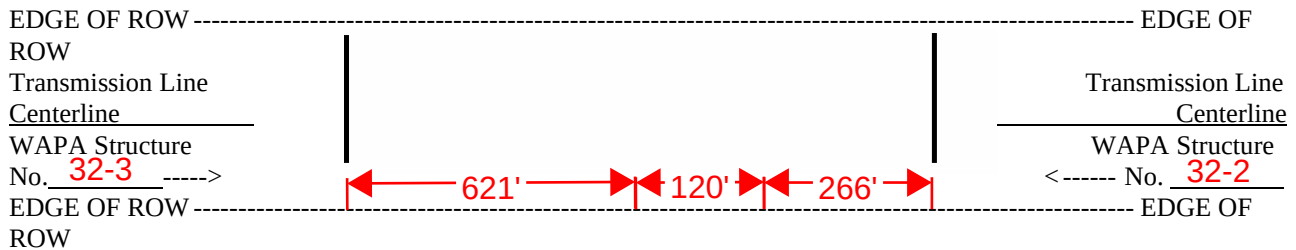
County: Laramie State: Wyoming

Complete if applicable: Subdivision _____, Lot _____,
Block _____, City _____

PROFILE: Show the location, height (feet), and distance (feet) from the nearest transmission line structure.



PLAN: Show the location and dimensions (in feet) of the proposed facility in relation to the center conductor of the transmission line.



Show NORTH by arrow at (+) in block at left and show approximate location in Section at right.

Attach other drawings and information as appropriate.

NW1/4	NE1/4
SW1/4	SE1/4

NOTE: Induced voltages and currents may occur on facilities constructed or placed under or near high voltage transmission lines, therefore, the Licensee shall be responsible for the protection of personnel and equipment in their design, construction, operation and maintenance of the facilities described in this application.

Consultant AVI PC

Name IAN JOHNSON

Telephone (307) 637 - 6017

Facility Owner/Company Name

City of Cheyenne

Printed Associate Name

Patrick Collins

Title

Mayor of Cheyenne

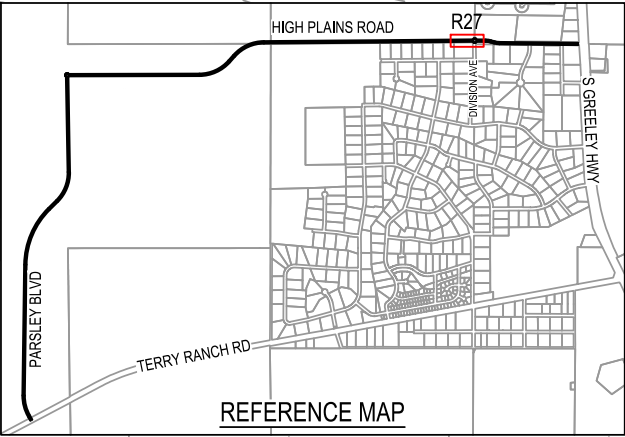
Address

2101 O'Neil Ave.

City, State, Zip

Cheyenne, WY 82001

Telephone (307) 637 - 6200

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